

GRANT OF RIGHT-OF-WAY

Instrument No. BK 512 PG 044 San Juan County, NM

GRANT

Allottee Group 22-A ("Grantor") hereby grants and conveys to NTEC Operations LLC ("Grantee") a right-of-way and easement over, upon, and across the lands described below, for the purpose of constructing, operating, maintaining, and removing the facilities contemplated by this instrument, together with the right of ingress and egress.

DESCRIPTION OF RIGHT-OF-WAY

Legal Description: T30N R16W Sec 12, N1/2
Area: 88.4 acres
Corridor: As depicted on the plat/exhibit maintained in the record file.

TERM & CONSIDERATION

Effective Date: May 1, 2019
Expiration: September 15, 2026
Annual Compensation: \$42,000

This right-of-way is subject to BIA/BLM approval where the underlying lands are held in trust or federal status, and to renewal upon the terms then applicable.

CONDITIONS

- Grantee shall restore the surface to as near its original condition as practicable following construction.
- Grantee shall maintain the right-of-way and any facilities in a safe condition throughout the term.
- This grant is appurtenant to the permitted use and shall not be assigned except as permitted herein.

NOTES

20-ft rail access ROW across allotted trust land. BIA renewal packet in progress.

GRANTOR - Allottee Group 22-A

GRANTEE - NTEC Operations LLC

Date: _____

Date: _____